

1.10 SWIMMING POOLS AND SPA POOLS

This Part should be read in conjunction with State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 which allows the construction of a swimming pool with a complying development certificate subject to certain criteria. Swimming pools that do not satisfy those criteria are subject to the following objectives and controls.

All applications for swimming pools over 40,000 litres in capacity must be accompanied by a BASIX Certificate. Refer to the Waverley Development Application Guide for more information.

Objectives

- (a) To protect significant trees and landscaping on the subject site and adjoining properties.
- (b) To retain the visual and acoustic privacy of adjoining properties.
- (c) To ensure the location of swimming pools and spa pools do not adversely impact upon adjoining properties and/or streetscapes.
- (d) to ensure swimming pools can be run with optimal energy consumption

Controls

- (a) Swimming pools and spa pools must be located at the rear of the property.
- (b) Swimming pools and spa pools should not be located within the side setback, between dwellings.
- (c) In the case of a corner block, swimming pools and spa pools must not be located within the primary street frontage.
- (d) Swimming pools and spa pools are to be setback from significant trees and landscaping in line with AS4970-2009 - Protection of trees on development sites.
- (e) Where decking abuts any boundary, additional consideration must be given to the visual privacy of adjoining properties.
- (f) Exposed pool structures must be screened if visible above ground.
- (g) All pool equipment must be enclosed within an acoustically treated structure.
- (h) All swimming pool pumps must reach a minimum of 7 stars or above under the Australian Government's Minimum Energy Performance Standards
 - (i) Acceptable swimming pool heating systems include: Solar only
 - Solar with electric boost
 - Electric heat pump